BARA
FINANCE & INVESTMENT LTD.

ABUJA CORPORATE OFFICE:
AMINASIA TRADE CENTRE, No 4, Kandi Close by Aminu Kano Crescent Wuse II, Abuja
Tel: 07063788366, 09046758116

LAGOS OFFICES:
Km 14 Garnet Plaza Second Floor Igbo - Efon Lekki- Epe Expressways Lagos State
Tel: 09031783130

No 87 Allen Avenue Ikeja
Lagos State Nigeria
Tel: 09043917141, 07065689175

KANO OFFICE:
No 57 Airport Road
Nomansland Opposite
Rochas Foundation Kano
Tel: 07012230022

IBADAN OFFICE:
First Floor, City Shopping Complex Opposite Federal Mortgage Bank Dugbe Ibadan
Tel: 09031781142

MAKURDI OFFICE:
Kyabis Plaza Opposite Keystone Bank around Nobis Supermarket Wurukum Makurdi, Benue State
Tel: 09019136868, 09076978645

07063788366, 09046758116, 09084825966
Barafinancehouse@gmail.com
www.barafinance-investment.com
info@barafinance-investment.com / admin@barafinance-investment.com

Date: 30/09/2020 **CASH/CREDIT** Bank Deposit ☐ Transfer ☑ POS ☐ Teller No. ☐

No. 8439

Name: Handley Dubam Blue-Jack

Address: 10 Bond Street Treasemore State-

Amount: ₦2,000,000

Description: Investment

Percentage Rate: 17%

Investment Category: Gold **Investment Plan:** 1Yr- **Fx Academy**

Balance:

Amount in words: Two Million

Naira Only Kobo

Thanks for your investment with us, Dream It! See It! Have It!

Customer's Sign

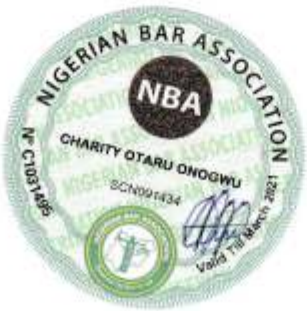
BUSINESS AGREEMENT

BETWEEN

BARA FINANCE & INVESTMENT LIMITED

AND

HANDLEY DUBAM BLUE-JACK



Prepared By;
C.O. Onogwu Esq
Legal Counsel
Bara Finance & Investment Limited,
Aminasia Trade Centre, No 4 Kandi Close
by Aminu Kano Crescent Wuse II, Abuja.

BUSINESS AGREEMENT

This **Business Agreement** is made this 30TH day of September, 2020

BETWEEN

BARA FINANCE & INVESTMENT LIMITED, a Private Limited Liability Company duly registered with the Corporate Affairs Commission of Nigeria with its registered office at **AMINASIA TRADE CENTRE, NO 4 KANDI CLOSE BY AMINU KANO CRESCENT WUSE II, ABUJA** (hereinafter referred to as "**The First party, Company**") which expression shall where the context so admits include its Successors-in title, executors, personal representatives and assigns of the **ONE PART**,

AND

HANDLEY DUBAM BLUE-JACK of 10 BOND STREET, TRADEMORE ESTATE, KABUSA, ABUJA (hereinafter referred to as the "The Investor") which expression shall where the context so admits include his successors-in-title, executors, personal representatives and assigns of the **OTHER PART.**

WHEREAS:

a. The **First Party** is a Finance & Investment company engaged in the business of Financial Consultancy & Investment, targeted at the running of financial Consultation and investment opportunities offered by the company.

b. The **Investor** has negotiated with the First Party, and is desirous of investing in the company by injecting the necessary capital in expectation of certain fixed Return on Investment (ROI) monthly.

c. **The First party, Company and the investor** (who shall in this context be referred) **to as "The Parties"** are desirous of going into a business relationship upon the receipt of payment of an agreed sum, aimed at realizing and maximizing the full benefits and investment opportunities offered by the company.

d. The parties have agreed to do the business under the terms and conditions listed hereunder:

IT IS AGREED BY THE PARTIES AS FOLLOWS:

1. The investor has injected such reasonable capital of **TWO MILLION NAIRA ONLY (N2, 000, 000 .00)** into the Company for the purpose of a monthly Return on Investment for the period of one year which is subject to renewal after the stipulated period.

2. It is agreed by both parties that each stage of the business transaction shall be for a period of **one (1) year** which entitles the Investor to an accrued interest. That upon its expiration, the Investor receives payment of his initial capital or otherwise roll over to next phase of the investment if the investor is satisfied with the services rendered by the company.
3. The **company** shall be responsible for the trade and management of all the investor's funds and keep proper records of all the investor's directives regarding his investment.
4. The **Investor** shall be entitled to 17% of his investment capital as his investment sum otherwise known as **"Return on Investment"** which shall be due for maturity after every one month.
5. Where the **Investor** desires to increase his investment capital, such increase shall be acknowledged by the **company** which shall accordingly be reflected on his already existing Investment on the **financial follow up chart,** when such increase is made within five (5) days from the date of receipt of ROI. Any payment in respect of the above shall be made by the **company** into the already existing bank account as furnished by the **Investor**.
6. That all losses incurred at the course of trading or during the pendency of the investment, shall be borne by the company and the company shall indemnify the investor where such loss is likely or may have affected the investment capital.
7. Where the **Investor** wishes to rollover his capital at the expiration of the first one (1) year, he shall notify **the company in writing** of his intention to rollover by submitting to the company a letter delivered by hand, mail or courier services to be submitted at the company's registered address at least three weeks before the expiration of the one (1) year period.
8. At the expiration of the investment term of one (1) year, where the investor has indicated interest to rollover, he shall print out his statement of account for the one-year period and hand it over to the company for citing and verification after which the investor can rollover his investment sum.
9. The investment shall run for a consecutive period of one year certain. However, where the **Investor** desires to terminate his investment with the company before the expiration of the first one (1) year, he shall notify **the company in writing** of his intention to so terminate by:
    a. Giving one month's notice to the company of his intention to so terminate. This notice shall be allowed by the company when it is given from the **9th month** of his one-year period.

b. In furtherance of (a) above, the investor shall submit to the company a letter delivered by hand, mail or courier services to be submitted at the company's registered address.
c. Such capital shall be returned to the investor after one month from the date of receipt of such notice, which shall be on the **10th** month of his investment, after the company is satisfied that the investor has fulfilled all the requirements for such termination.

10. Where the agreement is terminated at the instance of the investor before the expiration of the agreed **one (1) year Plan**, the **Investor** shall no longer be entitled to 17% of his investment capital at the expiration of the one months' notice.

11. At the expiration of the investment term of one (1) year, an investor who wishes to withdraw his investment sum, shall before doing same, print out his statement of account and hand it over to the company for citing and verification after which the investor can withdraw his investment sum.

COMMENCEMENT

12. This agreement is effective upon the day and date last signed and duly executed by the authorized representatives of the parties and shall remain in full force and effect until either of the following conditions occurs:
    a. the execution and completion of the business agreement.
    b. the written agreement of any of the parties to terminate. Such notice shall comply with the requirements for termination as stated in clause (9) to (11) of this business agreement.
    c. the expiration of the **1-year investment period** (or such later date as the parties may agree in writing).
    d. Upon termination of this business agreement, neither party shall have any obligation to the other, except for obligations that had already accrued but remained undischarged before such termination.

NON DISCLOSURE

13. Each party shall keep in strict confidence all financial, Commercial, and technical information belonging to the other party or which was developed jointly by the parties in preparation of the definitive agreement (the confidential information). Without the prior written consent of the other party, neither party shall at any time disclose any confidential information to any third party, save and except where it is necessary.

14. Confidential information shall not include information which:
    i. become public through no fault of the receiving party,
    ii. is received on a non-confidential basis from third parties,
    iii. is independently developed by the parties with use of confidential information.

LANGUAGE

15. All agreements, correspondence and other documents relevant to this business agreement shall be in English.

MODIFICATION

16. No provision of this Agreement shall be varied, amended, modified, contradicted or explained by any oral agreement in the course of dealing or performance or any other matter not set forth in an agreement in writing and signed by **The Parties** or their duly authorized representative.

DISPUTE RESOLUTION

17. The parties recognize that differences sometimes arise in the course of a relationship and wish to avoid litigation. Accordingly, all complaints, claims, disputes and other matters in question between the parties arising out of or relating to this Agreement or the breach thereof, shall first be submitted to the complaints department of the company for resolutions. Where the complaints department fails to resolve such disputes within a reasonable time, the disputes shall be submitted to negotiation within the company and may, failing resolution, then be subject to arbitration as set forth below; however, in all other cases, all legal and equitable rights and remedies provided at law and equity are reserved.

    a. Disputes claimed by either party must be made by written notice promptly upon the recognition of the event giving rise to such claim. Pending final resolution of any dispute, including arbitration in accordance with this provision, the party shall proceed diligently with performance of its obligations to the extent it is unrelated to the dispute and the subject matter of the dispute does not inhibit the progress of the business operations generally.
    b. Such performance by party shall not operate to waive or stop either party from pursuing the claim which gave rise to the dispute.

c. Where the parties so desire, they shall each appoint a representative who shall be privy to this agreement to meet for the purpose of dispute resolution. If the parties' representatives are able to reach an agreement, the dispute will be deemed resolved.

d. In furtherance of (c) above, the parties may each appoint a Solicitor for the purposes of dispute resolution where all the above stated options are exhausted without success.

e. If after 60 days from the date the dispute arose these negotiations prove unsuccessful in whole or in part, the parties may request that any remaining disputes be resolved by arbitration in accordance with the Provisions of the Arbitration and Conciliation Act CAP 19 Laws of the Federation of Nigeria 2004, and such disputes shall be arbitrated. Any award rendered pursuant to arbitration may include reasonable attorneys' fees and costs shall be final and binding upon the parties, and judgment may be entered upon it in a court of competent jurisdiction. All applicable statutes of limitations and the like shall be stayed while the requirements of this provision are pending, but only as to the issues hereby submitted for negotiation or arbitration.

18. For the purpose of this investment, there shall be no usage of staff name and account for investment, neither is physical cash allowed.

FORCE MAJEURE

19. The Company shall not be liable for any failure of or delay in the performance of this agreement for the period that such failure or delay is
    a. beyond the reasonable control of the company.
    b. materially affects the performance of any of its obligations under this agreement and
    c. could not reasonably have foreseen or provided against but

20. Notwithstanding the foregoing, in the event of such an occurrence, the company agrees to make in good faith, effort to perform its obligations hereunder.

APPLICABLE LAWS

21. The laws of the Federal Republic of Nigeria shall govern the construction, interpretation and enforcement in this business agreement.

IN WITNESS THE PARTIES TO THIS BUSINESS AGREEMENT SIGN AS FOLLOWS

THE COMMON SEAL OF BARA FINANCE AND INVESTMENTS LTD HAS BEEN AFFIXED IN THE PRESENCE OF

DIRECTOR

30/09/2020

SECRETARY

30/09/2020

(Investor)

HANDLEY DUBAM BLUE-JACK

Date 19/10/2020

In the presence of (witness)

Name: Joshua Blue-Jack

Address: No. 10 bond str. Trade more Est. Apo. Abuja.

Signature:

Date: 19/10/2020